

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: May 28, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	Plaintiffs, James Bay Resources Limited and Stephen Shefsky ("Plaintiffs"), moves for an order imposing sanctions against Defendant, Lockett & Horwitz ("L&H"), and its counsel Bernard J. Jasper in the amount of \$20,000 pursuant to Code of Civil Procedure section 128.5. <i>21-Day Safe Harbor Period</i> Code of Civil Procedure section 128.5 provides in part: If the alleged action or tactic is the making or opposing of a written motion . . . that can be withdrawn or

		appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected.” (Code Civ. Proc. § 128.5(f)(1)(B).) Plaintiffs’ counsel provides that on October 9, 2025, Plaintiffs’ counsel sent Mr. Jasper a copy of the draft motion for sanctions and advised him that Plaintiffs would proceed with filing it if L&H did not withdraw the Stay Motion. (Declaration of Jeanine Zalduendo, ¶ 13, Exs. 8-9.) However, the draft motion for sanctions did not give formal notice, and did not specify a hearing date. (See Ex. 9 to Zalduendo Decl.) Accordingly, the failure to specify when the motion would be made renders it fatally defective. <i>Merits</i> Nevertheless, even assuming the motion was made after the 21-day safe harbor period, the motion does not establish that the Stay Motion was brought in subjective bad faith. While the Court agrees that there was no competent evidence to support the assertion that Armstrong lacked capacity or was unable to prepare a defense in this action or to participate meaningfully in this litigation due to “long form COVID”, and/or a “major concussion”, or that Armstrong was “struggling with any of the basic challenges of daily life.” However, there is insufficient evidence that the Stay Motion was brought for an improper purpose or subjective bad faith. In reply, Plaintiffs submit a Supplemental Declaration of Jeanine Zalduendo. The general rule of motion practice is that new evidence is not permitted with reply papers, and should only be allowed in an exceptional case. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) If allowed, the other party should be given an opportunity to respond. (<i>Id.</i> at p. 1538.) There is an exception for points that are strictly responsive to arguments made for the first time in opposition. (<i>Golden Door Properties,</i>
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		<i>LLC v. Superior Court of San Diego County</i> (2020) 53 Cal.App.5th 733, 774.) This evidence is not strictly responsive to arguments made for in opposition, and was not previously presented to the Court. The Court therefore declines to consider this evidence which was presented for the first time on reply. Based on the foregoing, Plaintiffs' motion for sanctions is DENIED. <i>L&H to give notice.</i>
101	Haines vs. Sea Aira Mobile Home Park #3 LP, 24-01413277	Plaintiff, Cliff Haines, in pro per, moves for an order vacating the dismissal of his civil complaint and the earlier unlawful detainer judgment obtained by "Sea-Aira Mobile Home Park" ("Sea-Aira"). Plaintiff contends that he held legal title to a mobile home, but that without naming or serving Plaintiff, Sea-Aira initiated an unlawful detainer proceeding against other parties and obtained a default judgment. Plaintiff asserts that the unlawful detainer judgment is void on its face for lack of jurisdiction as Plaintiff was the true owner and was omitted entirely, such that the Court should vacate this judgment. Plaintiff also contends that Sea-Aira then used this void judgment to refuse to approve a lease for the home and blocked Plaintiff's attempts to sell his mobile home. Plaintiff asserts that he dismissed this case because Sea-Aira's representative and park manager, Drew Helms, stated that the park would not approve the lease of Plaintiff's buyer unless Plaintiff dismissed his lawsuit, and that Plaintiff signed the dismissal only because he would lose the sale and his money otherwise. Plaintiff thus asserts that the dismissal was procured through coercion and duress and that the court may relieve Plaintiff from a dismissal resulting from extrinsic fraud or duress under Code of Civil Procedure section 473(b). Defendant, Sea-Aira Mobile Home Park No. 3, L.P., a Limited Partnership, dba Sea Aira Estates ("Defendant") objects to Plaintiff's motion in that it seeks to overturn a